

25VECV06117 25VECV06117

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25VECV06117 Hearing Date: September 28, 2026 Dept: T

25VECV06117 Elkrief v City of LA

[TENTATIVE] ORDER: Plaintiff Claudine Elkrief's Motion to Set Aside and Vacate Judgment of Dismissal and the Order Sustaining the Demurrer Without Leave to Amend is GRANTED. The judgment of dismissal is stricken. The order sustaining the demurrer without leave to amend is stricken. The Court enters a new order sustaining the demurrer to the First Amended Complaint with 20 days leave to amend. Plaintiff Claudine Elkrief has leave to separately file the Second Amended Complaint attached to the motion as Exhibit E within 20 days.

Introduction

Plaintiff moved to set aside the dismissal entered on June 24, 2026, and the order sustaining the demurrer to the First Amended Complaint without leave to amend entered on June 12, 2026. Plaintiff requested the action be allowed to proceed, either by overruling the demurrer or by granting Plaintiff leave to file a Second Amended Complaint, alleging the true mailing (deposit) date of the City's claim-rejection notice.

Discussion

Plaintiff's requested relief is grounded upon Attorney Adina Ostoia's (Counsel) "mistake, inadvertence, surprise, or neglect". (Code Civ. Proc., sec. 473(b) – mandatory provision (473 Motion).) [NOTE: The attorney's affidavit of fault need not include an explanation of the reasons for the attorney's mistake, inadvertence, surprise or neglect. (Martin Potts & Assocs., Inc. v. Corsair, LLC (2016) 244 Cal.App.4th 432, 438-441.)] Counsel attested to neglect in failing to review the original envelope in which Defendant mailed the rejection notice to Plaintiff's government tort claim. The original envelope showed that the denial notice was deposited into the mail on April 24, 2025. Counsel further attested to neglect in relying upon the date of service identified on the Proof of Service attached to the denial notice. The Proof of Service provided that the denial notice was mailed on April 22, 2025. (Counsel's Decl. pars. 4-8, 11, 13-14.) Plaintiff asserted that it was upon this mistake, inadvertence, surprise, or neglect that Defendant's demurrer to the pleadings was sustained without leave to amend as to the statute of limitations defense and ultimately resulted in the dismissal of Plaintiff's action. Because Counsel provided testimony as to neglect, sufficient facts are shown to meet Plaintiff's initial burden on the 473 Motion.

The parties' briefs argue whether Counsel's neglect was excusable or not. However, both parties failed to recognize that the instant 473 Motion is based upon the mandatory provision of the statute. The mandatory provision of the statute does not include the word "excusable" prior to "neglect". The mandatory provision only requires a showing of neglect. It is the discretionary provision of the statute that requires a showing of "excusable" neglect. The parties' arguments as to whether Counsel's neglect was excusable or not are irrelevant because this motion is not based upon the discretionary provision of the statute.

Defendant further argued that the law firm had possession of the original envelope and that nothing prevented Counsel from reviewing the physical file or requesting someone to do so. However, the statute only requires attorney neglect, which Plaintiff sufficiently submitted. Defendant's additional facts support Plaintiff's claim of attorney neglect since someone at the law firm had possession of the envelope (admitted by Counsel) but Counsel neglected to review it. Defendant's argument is not persuasive to dispute that attorney neglect is sufficiently shown.

The motion to set aside the judgment of dismissal and the sustaining of the demurrer without leave to amend is GRANTED. Plaintiff is further GRANTED LEAVE TO AMEND the FAC to add the new fact allegations regarding the April 24, 2025, date stamp on the original envelope.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.